



PASSED

11th Legislature

Bill No. 11-011

To create a Chickasaw Historical Society, clarifying its principal role with empowerment and responsibilities, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

March, 1994

A BILL

Be it enacted by the Chickasaw Tribal Legislature assembled, that this Act shall be cited as the "Chickasaw Historical Society Act of 1994."

SEC. 2. The Chickasaw Tribal Legislature finds that:

(a) It has become necessary for the government of the Chickasaw Nation to assist in the perpetuation of Chickasaw culture and in the dissemination of Chickasaw history and relevant pursuits; and

(b) there has been expressed to the Governor of the Chickasaw Nation and to the Chickasaw Nation Cultural Resources Department within the Executive Department sufficient desire and interest by Chickasaw citizens and other interested parties to warrant formalization of a process to promote and preserve Chickasaw history and culture.

SEC. 3. The basis for authority of this Act is Article VI, Section 2, and Article VII, Section 4 of the Constitution of the Chickasaw Nation. The Chickasaw Tribal Legislature, with the

adoption of this Act, hereby:

- (a) Creates the Chickasaw Historical Society;
- (b) authorizes the adoption and approval of by-laws of the Chickasaw Historical Society; and
- (c) appropriates funding for the operations of the Chickasaw Historical Society.

SEC. 4. For the purpose of this Act:

(a) "The Chickasaw Nation" shall mean the government instituted in the Constitution of the Chickasaw Nation, or all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906, and their lineal descendants, or it shall mean the actual physical nation itself, depending upon reference;

(b) "Chickasaw Tribal Legislature," or "Legislature," shall mean that body of not more than 13 members, as created by Articles V, VI, VII, VIII and IX of the Constitution of the Chickasaw Nation;

(c) "Governor" shall mean the Chief Executive Officer of the Chickasaw Nation, as created by Articles X and XI of the Constitution, or whenever proper to so interpret, it may also mean the Lieutenant Governor, when acting in behalf of the Governor in accordance with Article X, Section 2 and in Article XI, Section 5 of the Constitution;

(d) "Society" shall mean the Chickasaw Historical Society, as created in this Act;

(e) "Board of directors" or "Board" shall mean the governing

body of the Chickasaw Historical Society, as created in this Act;

(f) "Constitution" means that document which formally established the Chickasaw Nation and its government, as ratified by the eligible registered voters of the Chickasaw Nation on August 27, 1983, and which was approved by the Secretary of the U.S. Department of the Interior on July 15, 1983;

(g) "Ex officio" means by virtue of the office, without any other warrant or appointment than that resulting from the holding of a particular office.

SEC. 5. There is hereby created the Chickasaw Historical Society. The Society shall have as its mission the honorable promotion of Chickasaw culture, history and genealogy, as well as making recommendations in relation to repatriation and acquisition of Chickasaw patrimonial objects and the protection of sacred tribal and related archeological sites, in accordance with the policies and interests of the Chickasaw Nation.

SEC. 6. (a) The Society shall be directed by a Board of Directors, each of whom shall be appointed by the Governor and confirmed by the Legislature. The Board shall be comprised of, but not limited to, seven regular members, a simple majority of whom shall be citizens of the Chickasaw Nation.

(b) Members of the Board should include, but are not limited to, an ethno-historian and/or genealogist; a licensed attorney who shall serve as legal adviser to the Board; an educator; an archaeologist; a Chickasaw language speaker; and a financial specialist.

(c) The Governor, Chairperson of the Legislature, and the Presiding Judge of the Chickasaw Nation shall serve as voting ex officio members of the Board. Other members may be appointed by the Governor when the positions held by those members are determined to be of benefit to the Board or to the Society; provided, the Governor shall specify at the time of appointment whether such members shall have voting privileges on matters coming before the Board. Individuals whose positions render authentication or validity to the mission and services of the Society may be designated as advisers to the Board by the Governor.

(d) The terms of office for each Board member shall be three years and staggered, with the Governor designating the length of terms of office for the first appointees as he appoints them, in the following manner: Two members for three-year terms; two members for two-year terms; and three members for one-year terms. The terms for additional members to the Board shall be likewise designated at the time of appointment.

(f) All members of the Board shall serve and may be removed for cause as provided under appropriate provisions of tribal law.

(g) No single member, or any group of members of the Board, is authorized to represent any discussion or decision of the Board, or to act as a personal representative of the Board unless specifically authorized by a vote of the majority of the Board to do so.

(h) No member of the Board shall have a direct or indirect financial or executive interest in any contract or transaction with

the Society.

SEC. 7. (a) The Board shall:

(1) Set policy and approve all policies, functions, programs and services relative to the mission and goals of the Society, provided that all policies, functions, programs, and services relative to the Society are not in conflict with tribal law or executive policies or executive orders;

(2) ensure that the purpose, mission and goals of the Society are accomplished;

(3) study, establish, review and evaluate periodically all policies set by the Board and twice annually submit its findings to the Tribal Historical and Cultural Committee of the Legislature for recommendation and review;

(4) elect from among itself officers of the Board, who shall be a Chairman, a Vice Chairman, a Secretary and a Treasurer, with all the proper attendant responsibilities and duties attached to each such office in accordance with the by-laws to be adopted by the Board for its operations and for those operations of the Society and individual chapters of the Society;

(5) personally support and serve as a constant advocate of the purpose, mission, goals and services of the Society; and

(6) establish the parameters for and management of chapters of the Society.

SEC. 8. (a) The Board shall meet at least monthly, but may meet as often as it deems necessary to carry out its functions.

(b) The Board shall hold an annual meeting in the month of

October each year, on a date set by the Board for such meeting, for the purposes of electing officers, naming members of standing committees and presenting the financial report to the Society's members. The annual meeting shall be open to all interested parties, with members of the Society encouraged to attend. Each chapter formed thereunder may also send representatives to attend the annual meeting. The annual meeting shall be held at the Chickasaw Capitol Building in Tishomingo, unless otherwise provided by the Board.

(c) Special meetings of the Board may be called by the Chairman or at the request of any four voting members of the Board. Notice of such special meeting shall contain a statement as to the purpose of the meeting, and shall be given on at least 24 hours notice, by U.S. Mail, electronic mail, or a form of telecommunications which shows in print the date and time of the delivery of such notice.

(d) Written notice of each regular meeting of the Board shall be provided by the Board Secretary at least ten days in advance of the scheduled meeting date. Said notice shall include an agenda for the meeting and appropriate supportive materials of agenda items to be studied before the meeting. Such notice shall include the date, time and place for the meeting.

(e) A quorum for the conduct of business at any meeting of the Board shall consist of a simple majority of the voting members of the Board. No attendance or voting by proxy shall be allowed.

(f) Any actions required to be taken at any meeting of the

Board or by any of the Board's committees may be taken without a meeting by direct contact of the appropriate Chairman if all members consent thereto in writing, and the consents are filed with the minutes of such meeting. Meetings of committees of the Board may be held by call of the Chairman of the committee if a quorum is connected by telephone.

(g) Members of the Board or of any committee of the Board may participate in any meeting by means of telephone conference or similar communication equipment in which all persons participating may communicate with each other. Participation in a meeting pursuant to the provisions of this paragraph of this Section shall constitute presence in person at such meetings.

(h) In all meetings of the Board or of its committees, Robert's Rules of Order shall be followed; provided, that the Board or any committee may vote to conduct its meetings informally; and provided further, that should any conflicts or questions arise regarding proper format or procedure of such meeting, resolution shall be made in accordance with the provisions of Robert's Rules of Order.

(i) Executive sessions of meetings of the Board may be conducted, upon vote of the Board assembled, after a call for executive session is made by any voting member of the Board, and the Chairman shall so then order.

SEC. 9. (a) The Board shall adopt by-laws for the operation of the Society and of the Board itself. Such by-laws shall not be in conflict with this Act or with any other applicable provision of

tribal or federal law or regulation which might be justiciably applied. By-laws adopted by the Board shall include, as minimum:

(1) provisions for order of business of each Board meeting and each committee meeting;

(2) establishment of committees for the Board and for the Society;

(3) duties and responsibilities of each officer of the Board and of each officer of the committees;

(4) goals and objectives for the Society; and

(5) provisions for the formation of various chapters of the Society.

SEC. 10. (a) Chapters of the Society may be established under the guidelines formulated by the Board.

(b) Persons, organizations or businesses interested in the aims of the Society may affiliate with a chapter; or, if they do not wish to affiliate with an established chapter, may be admitted to membership in the Society upon application and payment of a membership fee, to be set by the Board for all such memberships, subject to the approval process determined by the Board and contained in the by-laws of the Society. A listing of such fees shall be provided to the Governor's office and to the Tribal Historical and Cultural Committee of the Legislature.

(c) Chickasaw Historical Society chapters may be chartered wherever there is expressed a sufficient desire and sincere interest, and where authorized by the Board in accordance with the provisions of the by-laws of the Society.

SEC. 11. The Society, including the Board and its committees, shall not create its own staff; rather, staffing requests may be provided to the Governor by the Board. The Governor may provide such staffing assistance through the Executive Department's Cultural Resources Department, or its successor, to the extent feasible and practicable as determined by the Governor. Such staff shall retain their rates of pay and shall retain their positions within the Cultural Resources Department.

SEC. 12. (a) There is hereby appropriated from the Tribal General Fund, funds in the amount of \$10,000, to be used for start-up expenses of the Society and to pay travel costs associated with the officers of the Board. Within 90 days of this Act becoming law, the Governor shall submit a budget to the Legislature sufficient to meet the needs of the Society for the remainder of Fiscal Year 1994. All expenses incurred or contemplated to be incurred by the Society and/or by its Board, shall be made in compliance with existing Executive Department policies and procedures regulating such expenses.

(b) The Board shall submit to the Governor its requested budget for each succeeding fiscal year, in a timely manner and on an annual basis, so that the Society's budget might be included by the Governor in his annual tribal budget submitted to the Chickasaw Tribal Legislature.

Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on April 15, 1994, by a vote of 9
ayes, 0 nays, and 3 abstentions.

Ken Parker
Chairperson
Chickasaw Tribal Legislature

Robert Walton
Secretary
Chickasaw Tribal Legislature

Concur: *Bill Anoatubby*
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 15 1994

This legislation, as Constitutionally approved, shall now be
styled as Tribal Law 11-009.